

Calendar Line 1**Case Name:** *Ku and Kuo vs. Harald Herchen***Case No.:** 21CV376210**PLAINTIFF'S MOTION FOR TURNOVER ORDER**

Plaintiffs, as judgment creditors, move for a turnover order pursuant to Code of Civil Procedure sections 699.040, 708.120(c), and 708.205(a), seeking an order directing Attorney Charles Smith, counsel for Defendant in a pending criminal proceeding, to apply funds held in his client trust account toward satisfaction of Plaintiffs' judgment.

The motion is GRANTED IN PART and DENIED IN PART WITHOUT PREJUDICE.

Background and Applicable Law

Plaintiffs obtained a judgment against Defendant in a wrongful death action in the approximate amount of \$23 million. Plaintiffs seek enforcement against funds allegedly held by Attorney Charles J. Smith ("Mr. Smith") on behalf of Defendant.

The Enforcement of Judgments Law provides judgment creditors with broad remedies to reach property of a judgment debtor. A court may order a third person who possesses or controls property in which the judgment debtor has an interest to apply that property toward satisfaction of the judgment. (Code Civ. Proc., §§ 708.120, 708.205.) Funds belonging to a judgment debtor are not rendered immune from enforcement merely because they are held by a third person or maintained in an attorney trust account.

The relevant inquiry is whether Defendant presently has an interest in the funds and whether any legal basis exists preventing their application toward satisfaction of the judgment.

Funds Held in Attorney Trust Account

Mr. Smith does not dispute that he presently holds approximately \$200,000 in his client trust account belonging to Defendant. Mr. Smith does not assert that these funds are his property, does not claim that the funds constitute earned attorney fees, and does not assert an attorney lien or other ownership interest in the funds. Rather, Mr. Smith declares that, as an officer of the court, he agreed not to remove, transfer, disburse, or use the \$200,000 and has honored that commitment. Mr. Smith further states that he has not and will not make a unilateral decision to draw upon the funds to finance Defendant's criminal defense but seeks to preserve the ability to request court approval to do so if necessary.

Based on this record, the Court finds that Defendant retains an ownership interest in the \$200,000 and that the funds are within the scope of property subject to judgment enforcement.

Sixth Amendment Considerations

The Court has carefully considered Defendant's argument that turnover would impair his constitutional right to counsel, including his reliance on *Luis v. United States* (2016) 578 U.S. 5, *People v. Byoune* (1966) 65 Cal.2d 345, and *People v. Crovedi* (1966) 65 Cal.2d 199.

The Court recognizes the fundamental importance of the right to counsel and, where applicable, the ability of a criminal defendant to retain counsel of choice. The Court also recognizes that Defendant has an upcoming preliminary examination on August 24, 2026 in the pending criminal matter.

However, the authorities cited do not establish that a criminal defendant's assets are categorically exempt from lawful enforcement of a final civil judgment merely because the defendant may wish to reserve those assets for future criminal defense expenses. *Luis* involved the pretrial restraint of assets by the government in circumstances where the defendant sought to use those assets to retain counsel. It did not establish that all assets belonging to a judgment debtor are insulated from competing claims by civil judgment creditors.

The Court therefore declines to find that the Sixth Amendment, standing alone, prevents enforcement against funds that are otherwise subject to execution under California law.

At the same time, the Court is mindful of the significant practical consequences of depriving Defendant of access to funds that may be necessary for his defense in a pending criminal proceeding. The Court therefore concludes that a brief opportunity for Defendant to seek appropriate relief is warranted before the funds are released.

Alleged Additional \$175,000

Plaintiffs also contend that Mr. Smith previously represented that he possessed an additional approximately \$175,000 in funds associated with Defendant's bail. Mr. Smith disputes that assertion and contends Plaintiffs' evidence is speculative and inadmissible hearsay.

The Court need not resolve the evidentiary objection because Plaintiffs have not established on the present record that Mr. Smith presently possesses or controls those funds, that the funds remain in existence, or that Defendant presently has an interest in funds subject to turnover.

Accordingly, turnover is denied without prejudice as to the alleged additional \$175,000.

Order

Accordingly:

1. The motion is GRANTED as to the approximately \$200,000 held by Mr. Smith in his client trust account, subject to the following:
2. a. The turnover order shall be stayed for 30 days from entry of this order.

b. During that period, Defendant may seek appropriate relief by noticed motion if Defendant contends that turnover of some or all of the funds would materially impair his constitutional right to counsel in the pending criminal matter.

3. The motion is DENIED WITHOUT PREJUDICE as to the additional approximately \$175,000 referenced by Plaintiffs.
4. Mr. Smith shall maintain the funds subject to this order and shall not remove, transfer, disburse, or otherwise dissipate those funds except pursuant to further order of this Court.

The Court emphasizes that this ruling does not determine whether Defendant may ultimately demonstrate that some portion of the funds should be preserved for purposes of his criminal defense. Rather, the Court concludes only that, on the present record, Defendant has not established a legal exemption from judgment enforcement sufficient to prevent Plaintiffs from pursuing otherwise available post-judgment remedies.

Plaintiff to prepare the final proposed order, accompanied for Form EFS-020, within 7 days of the hearing.

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Calendar Line 3**Case Name:** *Linda Dashiell v. Louie Goros et al.***Case No.** 24CV443503

Discovery in this matter has become increasingly contentious. The Court has conducted an Informal Discovery Conference and ruled on two Motions to Quash, limiting the scope of discovery. Yet the parties remain unable to resolve discovery disputes through meaningful meet-and-confer efforts. Twenty-four discovery items remain in dispute. The Court finds that continued piecemeal judicial resolution of recurring discovery disputes is unlikely to promote the efficient management of this litigation.

Accordingly, the Court finds that appointment of a discovery referee pursuant to Code of Civil Procedure section 639(a)(5) may be warranted to facilitate the orderly, efficient, and expeditious resolution of future discovery disputes and to conserve judicial resources.

The parties are strongly encouraged to meet and confer before the 7/31/26 hearing regarding the selection of a mutually agreeable discovery referee and, if agreement is reached, to be prepared to stipulate to the appointment of a referee pursuant to Code of Civil Procedure section 638.

If the parties are unable to reach agreement, the Court intends to appoint a discovery referee pursuant to Code of Civil Procedure section 639(a)(5). In that event, the Court will provide a list of three qualified discovery referees. Each side shall be permitted to strike one referee from the list, after which the Court will appoint one of the remaining referees. The Court's tentative allocation is that the referee's fees and costs shall be shared equally among the parties, subject to reconsideration upon a noticed application supported by competent evidence.

Counsel shall personally appear at the hearing on Friday, July 31, 2026 at 9:00 a.m. prepared to address the identity of any agreed-upon or proposed referee.

The Court will prepare the Order.

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